A. Complaint email to the seller

DRAFT PREPARED WITH NYAYASETU — NOT SENT, NOT FILED. This is a draft for you to check and edit. It is not a legal notice and not a filed complaint. Verify every fact, complete each [MISSING] and [ADD] field, and remove anything that is not accurate before you use it.

To: PhoneBazaar Distributors — [ADD: seller's customer-care email (from the invoice or order page)]
Cc: PhoneBazaar wholesale — [ADD: platform customer-care / grievance officer email]
Subject: Complaint regarding Order [MISSING: Order ID] — Defective product / stopped working — request for refund

Dear Sir/Madam,

I am writing about my order [MISSING: Order ID] for refurbished phones. The facts are:

1. In March 2024 (approx.), I placed an order for refurbished phones on PhoneBazaar wholesale, sold by PhoneBazaar Distributors (Order ID: [MISSING: Order ID]) and paid ₹1,20,000.
2. The product was delivered on 10 March 2024. After delivery it developed a defect. In my words: “I run a small mobile repair shop. In March 2024 I bought 10 refurbished phones worth ₹1,20,000 from an online wholesaler, PhoneBazaar, to resell.”
3. I raised the matter with the seller/platform on 20 March 2024. What I did: “I emailed them on 20 March 2024 and they refused, saying refurbished stock is sold as-is.”
4. The response I received: “Four of them were defective and the seller refused to refund.”
5. As of 7 November 2026, the matter remains unresolved and I have not received the refund of ₹48,000 I asked for.

I would like to draw your attention to the following:

- The goods supplied suffer from a defect within the meaning of Section 2(10) of the Consumer Protection Act, 2019, which is a ground of complaint under Section 2(6)(ii).
- Under Rule 6(3) of the Consumer Protection (E-Commerce) Rules, 2020, a seller on a marketplace shall not refuse to take back goods or refund the consideration where the goods are defective. Where the platform itself is the seller, Rule 7(4) imposes the same duty.
- I submit that the refusal or failure to take back the defective goods and refund the price within the applicable period may amount to an unfair trade practice under Section 2(47)(viii) of the Consumer Protection Act, 2019.

I request you to:

1. Refund ₹48,000 (out of the ₹1,20,000 paid), as stated: “₹48,000 — for the 4 defective phones (₹12,000 each)”.

Please resolve this promptly and confirm in writing, quoting a reference number. If the matter is not resolved, I may pursue the remedies available to me, including the National Consumer Helpline and the Consumer Commission.

Documents I can share on request:

- Annexure A-1: Invoice / bill
- Annexure A-2: Emails with seller / platform

Regards,

Vikram Singh
Indore

[ADD: phone / email]

Generated on 2026-11-08 by NyayaSetu (AI-assisted legal information and document-preparation tool). Highlighted lines contain fields you must complete or check.